

25STCV15702 25STCV15702

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-19

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Case Number: 25STCV15702 Hearing Date: August 19, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 19, 2026

Case Name: Parker, et al. v. General

Motors, LLC

Case

No.: 25STCV15702

Matter: Hearing on Motion - Other for Compliance Pursuant to

C.C.P. 871.26 and Request for Sanctions Deposition

Moving

Party: Defendant General

Motors, LLC

Responding Party: Plaintiffs Gregory V Parker and Perry

Care Services Inc.

Tentative

Ruling: Defendant General Motors,

LLC's motion is granted.

Plaintiffs

Gregory V Parker ("Parker") and Perry Care Services Inc. ("Plaintiffs") filed their

action against General Motors, LLC (“Defendant”) and Does 1 through 10. The First Amended Complaint (“FAC”) alleges 4 causes of action for: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); and (4) breach of implied warranty of merchantability.

Defendant

moves to compel Parker to comply with Code of Civil Procedure section 871.26 and to appear for an initial deposition. Plaintiffs oppose.

Legal Standard

Code of

Civil Procedure section 871.26 “only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., § 871.26, subd. (a).) “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: (1) The Plaintiff[;] and (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant’s behalf.” (Code Civ. Proc., § 871.26, subd. (c)(1)-(2) [italics added].)¿¿¿

Unless good

cause is shown for failing to comply with Code Civ. Proc. § 871.26, subdivision (c), “a court shall impose sanctions as follows . . . [a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney . . . paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 871.26, subd. (j)(2) [italics added].)¿¿¿¿

Analysis

Defendant

moves to compel Parker to comply with Code of Civil Procedure section 871.26 to appear for their initial deposition. Defendant also requests the Court to impose sanctions against Plaintiffs’ counsel for failure to comply pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

The

provisions of Code of Civil Procedure section 871.26 are mandatory. Here, General Motors served its responsive pleading on September 19, 2025. General Motors noticed Plaintiff's deposition for January 8, 2026, and February 26, 2026, each time being objected to by Plaintiff. Defendant filed its motion May 22, 2026. Plaintiffs contend that the motion is now moot because the parties scheduled Parker's deposition for August 6, 2026. (Stark Decl., ¶ 9.) In reply, Defendant concedes that Parker's deposition was conducted.

Absent good cause, sanctions are mandatory. Plaintiffs did not provide the Court with any good cause or explanation for the delay. Plaintiffs had ample time to coordinate with Defendant to schedule the deposition.

Thus, the Court imposes sanctions against Plaintiff's counsel in the amount of \$1,500 to be paid within 15 court days pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

Conclusion

Defendant's motion to impose sanctions on Plaintiffs' counsel is granted. Plaintiffs' counsel shall pay a monetary sanction in the amount of \$1,500 to be paid within 15 court days pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).